

Custody and Visitation Standard Operating Procedure

Internal policy / SOP - for demo purposes only

1. Purpose and Scope

This SOP governs the firm's handling of custody and visitation matters in divorce and post-decree proceedings. It applies to all attorneys and support staff working on family law matters in Cook County, DuPage County, and surrounding jurisdictions.

2. Initial Case Intake

On intake, the responsible attorney must obtain and document: existing custody orders, parenting time schedules, school enrollment status, special-needs accommodations, and any documented history of domestic violence or substance abuse. A copy of any existing court order must be filed in the client matter within five business days.

3. Best-Interest Factors

Custody recommendations and litigation strategy shall be developed with reference to the statutory best-interest factors under 750 ILCS 5/602.7, including the wishes of the child, the mental and physical health of all parties, the willingness of each parent to facilitate the relationship with the other parent, the child's adjustment to home/school/community, and any history of violence. Each factor relevant to the case must be documented in the case strategy memo.

4. Travel and Relocation Restrictions

All custody agreements must explicitly address travel and relocation. Standard provisions include: (a) notification requirements for overnight travel outside the home state; (b) consent requirements for international travel; (c) restrictions on relocation greater than 25 miles from the child's primary residence (Cook County) or 50 miles (other Illinois counties); (d) procedures for handling relocation requests. Any overnight travel outside Illinois requires written consent of both parents unless the agreement specifies otherwise.

5. Documenting Custody Violations

All alleged custody violations must be documented in the client's case notes within 48 hours of being reported. Documentation must include: date and time of the alleged violation, specific provision violated, witnesses, supporting evidence (text messages, emails, third-party statements), and the client's preferred remedy. Patterns of violation may support a motion to modify custody or for contempt.

6. Emergency Custody Motions

Emergency custody motions are appropriate where there is an imminent risk to the child's physical or emotional safety. The filing must include: a verified petition, sworn affidavit from the client, supporting evidence, proposed order, and any available corroborating documentation (police reports, DCFS reports, medical records). The court generally requires notice to the opposing party absent extraordinary circumstances. The petition must be filed with the Domestic Relations Division of the appropriate circuit court.

7. Relocation Requests

A custodial parent seeking to relocate must comply with 750 ILCS 5/609.2. The procedure requires: written notice to the non-relocating parent at least 60 days before the proposed relocation; if the non-relocating parent objects, the petition must be filed with the court; the court considers the best-interest factors and the impact on the relationship with the non-relocating parent. Approval is required before relocation.

8. Parental Alienation Claims

Parental alienation allegations must be substantiated with documented behavioral evidence, ideally including reports from a licensed mental health professional, therapist, or guardian ad litem. The firm's internal strategy memo recommends pursuing court-ordered family therapy as a first-line remedy and reserving requests for change of custody for cases with documented harm to the child's relationship with the targeted parent.